

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 910

Introduced by Hardin, 48.

Read first time January 09, 2026

Committee:

- 1 A BILL FOR AN ACT relating to criminal procedure; to require defendants
- 2 convicted of sexual offenses against children to pay a fee for
- 3 electronic devices seized during prosecution for such offense; and
- 4 to define terms.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** (1) For purposes of this section:

2 (a) Electronic device means any electronic communication device, any
3 computer, or any device or drive used to store data electronically;

4 (b) Electronic communication device has the same meaning as in
5 section 28-833; and

6 (c) Sexual offense against a child means an offense:

7 (a) For which registration is required under the Sex Offender
8 Registration Act; and

9 (b) That involved a victim who was younger than eighteen years of
10 age at the time of the offense.

11 (2) Upon conviction for a sexual offense against a child, the court
12 shall order the defendant to pay a fee of one hundred dollars for each
13 electronic device seized in connection with the offense. The court shall
14 remit such fees to the State Treasurer for credit to the Nebraska State
15 Patrol Cash Fund. The Nebraska State Patrol shall use such fees to defray
16 the costs of forensic analysis of such devices.

17 (3) If the court finds the defendant to be indigent, the court shall
18 waive the fees required by this section.